

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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DIONITO TIMBERLAKE

Plaintiff,

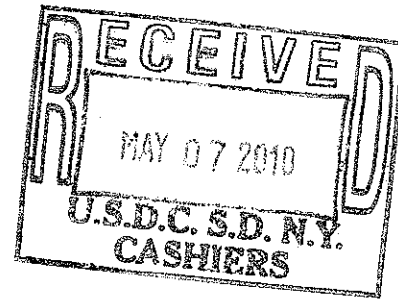
-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
MELHADO TAX REGISTRATION NO. 900463
INDIVIDUALLY AND AS A POLICE OFFICER, AND
POLICE OFFICERS JOHN AND JOE DOE(FICTITIOUS
NAMES TO BE AMENDED LATER) AS POLICE
OFFICERS AND INDIVIDUALLY

Defendants.
-----X

Plaintiff Demands
Trial by Jury

VERIFIED COMPLAINT



Plaintiff DIONITO TIMBERLAKE (hereinafter referred to as Plaintiff), by his attorney Emdin & Russell, LLP., alleges by way of her complaint the following:

NATURE OF CLAIMS

1. Plaintiff seek redress pursuant to 42 U.S.C. Section 1983 and 1988, et seq., for violation of rights secured by the First, Fourth, Sixth, Eighth Amendments, and by the Equal Protection and Due Process Clause of the Fourteenth Amendment to the United States Constitution.
2. Plaintiff also seek redress under Article I, Section 11 of the New York State Constitution for denial of equal protection, and redress for tortuous conduct against Plaintiff by defendants through Assault and Battery, Negligent Hiring, Training and Supervision, False Arrest and Imprisonment, Malicious Prosecution, Abuse of Process, Conspiracy, Fabrication of Evidence and Prima Facie Tort.

3. The Plaintiff seeks damages, compensatory and punitive, affirmative and equitable relief, an award of costs, interest and attorney's fees, and such other and further relief as this Court deems equitable and just.
4. Due to outrageous and intentional acts of police misconduct, the Plaintiff, an innocent young adult was repeatedly pushed and thrown to the ground, a knee placed in his face and tightly handcuffed. As a result of the Defendant's conduct Plaintiff suffered a chipped bone in his thumb and bruises to the side of his face. Plaintiff was unlawfully arrested for purely fictitious crimes conjured by said Defendant, Police Officer Melhado, while knowing all along that no crimes had been committed. Moreover, all said Police Officers defendants present conspired to, and in part did, knowingly offer false testimony either verbally, written or acquiesced against the Plaintiff in order to effectuate an arrest as well as drafting a summons falsely charging the Plaintiff with Disorderly Conduct.

JURISDICTION

5. This court is empowered by 28 U.S.C. Section 1331, 1343, 1367, 2201, and 2202, to hear and decide these claims for relief. This Court has pendent and supplemental jurisdiction over all claims asserted herein under the laws of the State of New York, pursuant to 28 U.S.C. 1367 (A).
6. Venue is proper for the United States District Court of the Southern District of New York pursuant to 28 U.S.C. 1391 (a), (b) and (c). All material events described in this Complaint occurred in the City of New York, New York County.

JURY TRIAL DEMANDED

7. Plaintiff demand a trial by jury on each of the claims pleaded herein.

PARTIES

8. Plaintiff Dionito Timberlake is an U.S. citizen and resident of the County of New York, State of New York.
9. Police Officer Melhado tax registration number 900463 of the 44th Precinct, is a Police Officer, and Police Officers employed by the City of New York Police Department, and are still currently employed as said same.
10. The aforementioned named Defendants, Police Officer was at all time relevant herein duly appointed and acting officer, servant, employees and agents of the New York City Police Department, a municipal agency of the County of the New York. The aforementioned named Defendant, Police Officer was at all times relevant herein acting under the direction and control of the New York City Police Department, a municipal agency of the City of New York, and were acting pursuant to either official policy, or the custom, practice and usage of New York City Police Department, a municipal agency of the City of New York. The aforementioned named Defendants, Police Officers are also being sued individually.
11. At all times relevant herein, all of the aforementioned named Defendants, Police Officers were acting under color of the laws, statutes, ordinances, regulations, policies, customs and usages of the State of New York, and the City of New York Police Department, and was acting in the course and scope of their duties and function as officers, agents, servants, and employees of the City of New York Police Department, and was acting in the course and scope of their duties and functions as officers, agents, servants, and employees of the City of New York Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. At all times relevant herein, all of the aforementioned named Defendants

Police Officers were acting for and on behalf of the City of New York Police Department, with the power and authority vested in them as officers, agents, servants and employees of the City of New York Police Department, a municipal agency of the City of New York. The Defendant City of New York is liable for all the Causes of Action mentioned herein based on the principle of Respondent Superior, as well as the other principles articulated herein.

PRELIMINARY FACTS

12. Plaintiff has complied with all conditions precedent to commencing this action.

STATEMENT OF FACTS

13. Plaintiff was falsely, detained, assaulted and arrested by all of the aforementioned named Defendant Police Officers on or about May 11, 2008, at approximately 2:30 a.m., at the vicinity of 1020 Walton Avenue, Bronx County in the State of New York. The detention and arrest by said Defendants was made without cause or justification. Defendants did intentionally, willfully and maliciously, wrongfully, unlawfully, and unjustifiably arrest, detain, assault and incarcerate the Plaintiff.

14. Defendants, unbeknownst to the Plaintiff, were responding to the abovementioned location in regards to shots fired.

15. Plaintiff was exiting 1024 Walton Avenue, returning from a "House party."

16. Plaintiff walked past 1020 Walton Avenue with his sister and friends were ordered by the Defendants to "Hurry up."

17. Plaintiff commented to his friends that he could not walk fast and that there was no speed limit as to how fast he should walk.

18. Defendants overheard this comment, that being Police Officer Melhado who was walking directly behind the Plaintiff.
19. Plaintiff made said comment due to his partially amputated foot which impedes his walking and/or running.
20. Defendant Melhado responded to Plaintiff's comment and said "Just for that smart remark, get up against the gate you are going to be arrested."
21. Plaintiff was then searched, cap knocked-off and repeatedly pushed against said gate.
22. Plaintiff was then thrown to the ground by defendant Melhado, and Melhado placed his knee in Plaintiff's face as he was handcuffed.
23. Prior to being slammed to the concrete ground Plaintiff asked why he was being arrested and Defendant Melhado responded "Shut the fuck up."
24. Plaintiff was tightly handcuffed and placed into a police vehicle and transported to the 44th Precinct.
25. Plaintiff suffered a chipped bone to his thumb, bruising to his face and stinging to his wrists and hands from the tight handcuffs, as a result of Defendant Melhado's actions.
26. The conduct of the Defendants in detaining, falsely arresting, assaulting, imprisoning and fabricating, proximately caused Plaintiff serious and permanent emotional injury, pain and suffering, mental anguish, humiliation and embarrassment.
27. All conduct of the Defendants herein was gross, willful, wanton, intentional, purposeful and reckless, negligent and causeless.
28. Plaintiff was detained in the confines of the 44th Precinct for approximately one hour whereupon he was given a Desk Appearance Ticket/Summons.
29. Plaintiff's case was eventually dismissed on July 10, 2008.

MONELL CLAIM

30. At all times material to this complaint, the defendant the City of New York, acting through New York City Police Department, had in effect de facto policies, practices, and customs that were a direct and proximate cause of unconstitutional conduct of defendants. These de facto policies, practices and customs include, inter alia: the failure to properly screen, supervise, discipline, transfer, counsel, and/or otherwise control Police Officers who are repeatedly accused of such acts; and, the police code of silence wherein Police Officers regularly cover-up police misconduct and unjustified force and tactics by telling false and incomplete stories, or by failing to report the misconduct and unjustified force and tactics by police officers, as well as detaining, assaulting, searching and falsely arresting African-American males.
31. While the tolerance for brutality arises from the same set of police attitudes as the tolerance of corruption, there is an important difference. Unlike serious corruption, which most cops outwardly tolerate but inwardly deplore and resent, officers seem fairly tolerant - - both outwardly and inwardly - - of occasional police brutality... [M]any do not seem to believe that anything is really wrong with a few blows and bruises now and then. Even officers who would never take a free cup of coffee seem to tolerate what they believe is a little street justice.' An excessive use of fists to face, a nightstick to the ribs, and knees to groin are seen as the realities of policing."
32. The Defendant the City of New York and New York City Police Department had or should have had, knowledge of the vicious and violent tendencies of its employees, including all of the named Police Officers, Defendants.

33. The Defendant the City of New York and New York City Police Department knew or should have known of the unlawful actions of all of the named Police Officers, defendants through actual and constructive notice of their unlawful activities, including, but not limited to those allegations as set forth herein above.
34. The Defendant the City of New York failed to exercise reasonable care by retaining and not terminating the employment of all said named Police Officers, Defendants or taking other appropriate corrective action. The occurrence complained herein is due to the negligence and recklessness of the Defendant the City of New York.
35. On information and belief, the Defendants, the City of New York and New York City Police Department have failed to effectively screen, hire, train, supervise and discipline their Police Officers, including all of the named defendants, Police Officers, for their propensity for misconduct, including lack of truthfulness, and for their failure to protect citizens from unconstitutional conduct of other Police Officers, thereby permitting and allowing the named Police Officer Defendants herein to be in a position to unjustifiably, manufacture evidence, arrest, restrain and assault the Plaintiff and to otherwise cause her injury and violate her federal and state constitutional rights.
36. On information and belief, all of the named Police Officer Defendants have been the subject of prior civilian and departmental complaints of misconduct that gave notice to, or should have given notice to, the City of New York that all of the named Police Officer Defendants were likely to engage in conduct that would violate the civil and constitutional rights of the public, such as the conduct complained of by Plaintiff herein.
37. On information and belief, the Defendants, the City of New York and the New York City Police Department, maintained an inadequate structure for risk containment and stress

management relative to its Police Officers, and failed to create proper means of containing such risk and managing such stress. Inter alia, the structure was deficient at the time selection of police officers and thereafter during their employment, in its ability to evaluate and exchange information within the command structure about the performance of individual Police Officers; in its training of supervisory personnel to effectively and adequately evaluate performance of an officer; and its ability to otherwise put the command structure on notice that an individual or individuals were at significant levels of risk to the public at large or to specific segments thereof. The effect of this was to permit Police Officers to function at levels of significant and substantial risk to the public.

38. As a result of the foregoing conscious policies, practices, customs and/or usages, defendant the City of New York and New York City Police Department, have permitted and allowed the employment and retention of individuals as Police Officers whose individual circumstances place the public or segments thereof at substantial risk of being victims of violent and fraudulent behavior. Such direct or implied policies, practices, customs, and/or usages are a direct and proximate cause of the conduct alleged herein and are otherwise a direct and proximate cause of the injuries to Plaintiff herein.
39. As a direct and proximate result of the City of New York's wrongful policies, practices, customs and/or usages complained of herein, Plaintiff suffered severe physical, mental and emotional injury and pain, mental anguish, suffering, humiliation and embarrassment.
40. Defendant City of New York is additionally liable under the legal principle of Respondent Superior, in that all of the named Police Officer Defendants were on duty and were acting in the course and scope of his duties and employment as a City of New

York Police Officer(s) during the detention, false arrest, malicious prosecution and assault upon Plaintiff Dionito Timberlake.

FIRST CLAIM FOR RELIEF
42 U.S.C. 1983

41. Plaintiff repeats and realleges every assertion contained in paragraphs "1" through "40" of this Complaint as if recited at length herein.
42. By the aforesaid acts, defendants have violated Plaintiff's Right to Equal protection of laws under the Fourteenth Amendment to the United States Constitution, thereby giving rise to a cause of action pursuant to 42 U.S.C. 1983.
43. The conduct and actions of the named Defendant Police Officers, and Defendant City of New York, acting under color of law, in falsely arresting, detaining, incarcerating, assaulting, maliciously prosecuting, providing false evidence and conspiring against Plaintiff, was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of the Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. 1982, et seq., deprived the Plaintiff of his rights including, but not limited to, his rights under the First and Fourth Amendments guaranteeing protection against unlawful seizure of his person, the Fifth, Sixth and Fourteenth Amendments guaranteeing due process, right to fair trial and equal protection under the law, and the Eighth Amendment guaranteeing protection from cruel and unusual punishment, and Title 42 U.S.C. 1983 et seq.
44. By reason of the Constitutional violations by the Defendants, Plaintiff has been damaged as set forth above.

SECOND CLAIM FOR RELIEF
New York Constitution Art. I, 11

45. Plaintiff repeats and realleges every assertion contained in paragraphs "1" through "44" of this Complaint as if recited at length herein.
46. By the aforesaid acts, defendants have violated Plaintiff's Right to Equal protection laws under Article I, 11 of the New York State Constitution, thereby giving rise to cause of action pursuant to that Article.
47. The conduct and actions of the named Defendant Police Officers, and Defendant the City of New York, acting under color of law, in falsely arresting, detaining, imprisoning, assaulting, maliciously prosecuting and conspiring against Plaintiff, was done intentionally, maliciously and/or with a reckless disregard for the natural and probable consequences of their acts, was done without lawful justification, and was designed to and did cause specific and serious bodily, mental and emotional harm, pain and suffering in violation of the Plaintiff's Constitutional rights as guaranteed under law and Constitution of the State of New York. The above-described actions and omissions engaged in under color of state law by the named Police Officer Defendants, including Defendant City of New York, sued as a person within the meaning of Article I, 11, deprived the Plaintiff's of rights, including but not limited to, their rights under Article I, 8,9 guaranteeing freedom of expression and association. Article I, 12 guaranteeing protection against unlawful seizure of one's person, Article I, 11 guaranteeing due process and equal protection under the law, and Article I, 15 guaranteeing protection from cruel and unusual punishment.
48. By reason of the Constitutional violations by Defendants, Plaintiff has been damaged as set forth above.

THIRD CLAIM FOR RELIEF
Negligent Hiring, Training and Supervision

49. Plaintiff repeats and realleges every assertion contained in paragraphs “1” through “48” of this Complaint as if recited at length herein.
50. The above-described injuries suffered by the Plaintiff was the proximate result of the negligence of the Defendant New York City Police Department, in that the defendant City of New York, and New York City Police Department failed to exercise reasonable care in hiring, employment, supervision, and training of its employees.
51. The Defendant City of New York, and New York City Police Department had, or should have had, knowledge of the vicious and violent tendencies of its employees, including the named Police Officers, Defendants.
52. Defendant City of New York, and New York City Police Department knew or should have known of the unlawful actions of the named police officers defendants, through actual and constructive notice, of their unlawful activities, including but not limited to those allegations as set forth in the preceding paragraphs above. Defendants City of New York, and New York City Police Department failed to exercise reasonable care by retaining and not terminating the employment of the named Police Officer Defendant or taking other appropriate corrective action. The occurrences complained of herein were due to the negligence and recklessness of the defendant City of New York, and the New York City Police Department.
53. By the reason of the tortuous conduct of Defendants, Plaintiff has been damaged as set forth above.

FOURTH CLAIM FOR RELIEF
False Arrest

54. Plaintiff Timberlake repeats and realleges every assertion contained in paragraphs “1” through “53” of this Complaint as if recited at length herein.
55. By the aforesaid acts, defendants have unlawfully and unjustifiably arrested and detained Plaintiff without any lawful cause whatsoever. Defendants acted willfully, unlawfully, maliciously, recklessly, and negligently in arresting and detaining Plaintiff, despite Plaintiff’s innocence, and utilized the criminal justice system through conspiracy and providing false evidence to prosecute Plaintiff in order to “cover up” their own wrongful conduct such as the unlawful detention and arrest of Plaintiff an African-American male.
56. The Defendants tortuous conduct, as set forth above herein, directly resulted in the Plaintiff being wrongfully imprisoned, brought before a court, arraigned, fingerprinted processed to ultimately be released on her own recognizes.
57. By reason of the Defendants tortuous conduct, Plaintiff has been damaged as set forth above.
58. For all claims arising under New York State Law, Defendant, New York City, Police Officer Melhado and John and Joe Doe and the New York City Police Department are jointly and severally liable to the Plaintiff inasmuch as this action arises out of the exceptions set forth in 1602 subdivisions 7 and 11 of the Civil Practice Law and Rules.

FIFTH CLAIM FOR RELIEF
False Imprisonment

59. Plaintiff Timberlake repeats and realleges every assertion contained in paragraphs “1” through “58” of this Complaint as if recited at length herein.

60. In handcuffing the Plaintiff, detaining him against his will, Defendants, City of New York falsely imprisoned the Plaintiff.
61. In falsely arresting, detaining, imprisoning and conspiring against Plaintiff, Defendants, Police Officers acted with malicious intent, recklessness, and negligence, to injure and harm Plaintiff.
62. By the aforesaid acts, defendants have caused physical harm and injury upon the person of the Plaintiff. Defendants acted willfully, unlawfully, maliciously, recklessly, and negligently in the use of abusive language, unwanted touching of the Plaintiff which emotionally damaged the Plaintiff.
63. By reason of tortuous conduct of Defendant(s), the Plaintiff, Timberlake has been damaged as set forth above.
64. For all claims arising under New York State Law, defendant, New York City, Police Officers Melhado, John and Joe Doe and the New York City Police Department are jointly and severally liable to the Plaintiff inasmuch as this action arises out of the exceptions set forth in 1602 subdivisions 7 and 11 of the Civil Practice Law and Rules.

SIXTH CLAIM FOR RELIEF
Prima Facie Tort

65. Plaintiff repeats and realleges every assertion contained in paragraphs "1" through "64" of this Complaint as if recited at length herein.
66. In falsely arresting, detaining, imprisoning and conspiring against Plaintiff, Defendants, Police Officers acted with malicious intent, recklessness, and negligence, to injure and harm Plaintiff.
67. By reason of the Defendants tortuous conduct, Plaintiff has been damaged as set forth above.

68. For all claims arising under New York State Law, Defendant, New York City, Police Officers Melhado, John and Joe Doe and the New York City Police Department are jointly and severally liable to the Plaintiff inasmuch as this action arises out of the exceptions set forth in 1602 subdivisions 7 and 11 of the Civil Practice Law and Rules.

SEVENTH CLAIM FOR RELIEF
Conspiracy

69. Plaintiff Timberlake repeats and realleges every assertion contained in paragraphs “1” through “68” of this Complaint as if recited at length herein.

70. The named Police Officers Defendants did knowingly and intentionally, agree and or otherwise conspire to provide false testimony and/or evidence against the Plaintiff to cover up their wrongdoing of falsely arresting, detaining, imprisoning, assaulting and maliciously prosecuting the Plaintiff.

71. By the aforesaid acts, Defendants have unlawfully and unjustifiably arrested and detained Plaintiff without any lawful cause whatsoever. Defendants acted willfully, unlawfully, maliciously, recklessly, and negligently in arresting and detaining Plaintiff, despite Plaintiff’s innocence, and utilized the criminal justice system through conspiracy and providing false evidence to prosecute Plaintiff in order to “cover up” their own wrongful conduct.

72. The Defendant’s tortuous conduct caused the Plaintiff to suffer a chipped bone and severe emotional distress and thus he has been damaged as set forth above.

73. The Defendants tortuous conduct, as set forth above herein, directly resulted in the Plaintiff being wrongfully imprisoned.

74. By reason of the Defendants tortuous conduct, Plaintiff has been damaged as set forth above.

EIGHT CLAIM FOR RELIEF
Malicious Prosecution

75. Plaintiff repeats and realleges every assertion contained in paragraphs “1” through “74” of this Complaint as if recited at length herein.
76. The Defendants intentionally and knowingly provided false evidence and/or information to the prosecutorial agencies involved herein in an effort to conceal their wrongful actions.
77. Based on the Defendants deliberate actions as set forth above, the Plaintiff was falsely and maliciously prosecuted by the Bronx County District Attorney’s Office.
78. The Plaintiff was charged with Disorderly Conduct.
79. As set forth above the Plaintiff was forced to go to court whereupon the charge was dismissed.
80. The named Police Officers Defendants provided false information against the Plaintiff.
81. Despite the defendants tortuous actions the Plaintiff’s case was dismissed on or about July 10, 2008.
83. By reason of the tortuous conduct of Defendants, the Plaintiff has been damaged as set forth above.

NINTH CLAIM FOR RELIEF
Assault and Battery

84. Plaintiff Timberlake repeats and realleges every assertion contained in paragraphs “1” through “83” of this Complaint as if recited at length herein.
85. By the aforesaid acts, Defendants have caused physical harm and injury upon the person of the Plaintiff. Defendants acted willfully, unlawfully, maliciously, recklessly,

and negligently in the use of excessive force upon the Plaintiff's person, through the violent use of force by pushing, grabbing, and throwing the Plaintiff to the ground.

86. By reason of tortuous conduct of defendant(s), the plaintiff has been damaged as set forth above.

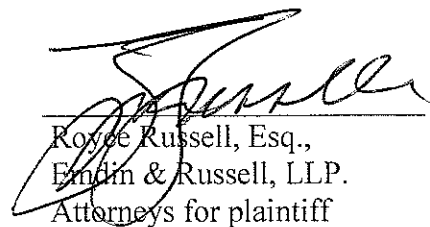
WHEREFORE, Plaintiff, Dionito Timberlake, respectfully request judgment upon all causes of action against defendants as follows:

1. With respect to defendant The City of New York.
 - a. Declaratory judgment declaring that the defendant City of New York have violated the aforesaid statutes and constitutions;
 - b. Restitution to Plaintiff of his rights, privileges, benefits and income which would have been received by them but for defendants unlawful, wrongful, tortuous, and unconstitutional conduct;
 - c. Compensatory damages in an amount to be determined by the court and jury;
 - d. Punitive damages in an amount to be determined by the court and jury;
 - e. Reasonable attorney's fees, disbursements and costs of this action, pursuant to 42 U.S.C. Section 1988;
 - f. All legal and statutory interest on sums awarded;
 - g. Such other and further relief as this honorable court may deem just, proper and equitable.
2. With respect to each named Police Officer Defendant:
 - a. Declaratory judgment declaring that the defendant have violated the aforesaid statutes and constitutions;

- b. Restitution to Plaintiff of her rights, privileges, benefits and income which would have been received by them but for defendant's unlawful, wrongful, tortuous, and unconstitutional conduct;
- c. Compensatory damages in an amount to be determined by the court and jury;
- d. Punitive damages in an amount to be determined by the court and jury;
- e. Reasonable attorney's fees, disbursements and costs of this action, pursuant to 42 U.S.C. Section 1988;
- f. All legal and statutory interest on sums awarded.

WHEREFORE, THE PLAINTIFF SEEKS JUDGMENT on the first through the seventh causes of action for compensatory damages, punitive damages, legal fees and costs, disbursements, and such other and further relief as to the court seems just and proper.

DATED: New York, New York
May 6, 2010



Royce Russell, Esq.,
Erdin & Russell, LLP.
Attorneys for plaintiff
286 Madison Avenue, Suite 2002
New York, New York 10017
(212) 683-3995

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

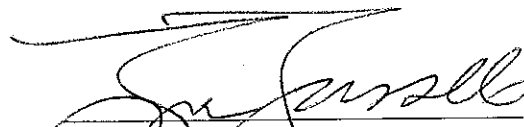
That I am an attorney associated with the law firm of Royce Russell, Esq., the attorneys of record for the Plaintiff in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Verified Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
May 6, 2010


By: Royce Russell, Esq.